

SECOND REGULAR SESSION

[PERFECTED]

SENATE SUBSTITUTE NO. 2 FOR

SENATE COMMITTEE SUBSTITUTE FOR

SENATE BILL NO. 1012

103RD GENERAL ASSEMBLY

INTRODUCED BY SENATOR NICOLA.

5687S.16P

KRISTINA MARTIN, Secretary

AN ACT

To amend chapters 1 and 130, RSMo, by adding thereto three new sections relating to artificial intelligence, with penalty provisions and a severability clause.

Be it enacted by the General Assembly of the State of Missouri, as follows:

Section A. Chapters 1 and 130, RSMo, are amended by adding
2 thereto three new sections, to be known as sections 1.2045,
3 1.2058, and 130.165, to read as follows:

1.2045. 1. The provisions of this section shall be
2 known and may be cited as the "AI Non-Sentience and
3 Responsibility Act".

4 2. For purposes of this section, the following terms
5 mean:

6 (1) "Artificial intelligence", or "AI system", a
7 machine-based system that can, for a given set of human-
8 defined objectives, make predictions, recommendations, or
9 decisions influencing real or virtual environments.
10 Artificial intelligence systems use machine and human-based
11 inputs to:

12 (a) Perceive real and virtual environments;

13 (b) Abstract such perceptions into models through
14 analysis in an automated manner; and

15 (c) Use model inference to formulate options for
16 information or action;

17 (2) "Developer", the party or parties primarily
18 responsible for the design, coding, and initial creation of
19 an AI system, including any person or entity that
20 substantially modifies, fine-tunes, retrains, or materially
21 alters an existing AI system in a manner that changes its
22 capabilities, risk profile, or intended uses;

23 (3) "Emergent properties", unanticipated or higher-
24 level behaviors or functionalities of an AI system that
25 arise from complex internal algorithms not specifically
26 programmed by its human creators;

27 (4) "End user", an individual who uses an artificial
28 intelligence system without creating, controlling,
29 deploying, or exercising authority over the system. The
30 term does not include a licensed professional rendering or
31 assisting in the rendering of a regulated service, as
32 defined in subdivision (4) of subsection 8 of this section,
33 who shall remain subject to the provisions of subdivision
34 (2) of subsection 8 of this section;

35 (5) "Government entity", a court, the general
36 assembly, the governing body of a political subdivision, or
37 another entity of the state or a political subdivision that
38 has adjudicatory or rulemaking authority;

39 (6) "Manufacturer", any party that produces or
40 supplies an AI system or its physical apparatus, if any, for
41 distribution or sale;

42 (7) "Operator", any natural person or legally
43 recognized entity that directly uses, runs, controls, or
44 supervises the operation of an AI system in practice;

45 (8) "Owner", any natural person, corporation, or other
46 legally recognized entity that creates, controls, deploys,
47 operates, or otherwise exercises authority over an AI system;

48 (9) "Person", a natural person or any entity
49 recognized as having legal personhood under the laws of this
50 state, explicitly excluding any AI system;

51 (10) "Stakeholder", any natural person or legal person
52 with a vested interest in the system.

53 3. For all purposes under state law, AI systems are
54 declared to be non-sentient entities.

55 4. A government entity shall not grant to an AI system
56 the legal status of a personhood or any form of legal
57 personhood, nor consider an AI system to possess
58 consciousness, self-awareness, or similar traits of living
59 beings.

60 5. An AI system shall not be recognized as a spouse,
61 domestic partner, or hold any personal legal status
62 analogous to marriage or union with a human or another AI
63 system. Any purported attempt to marry or create a personal
64 union with an AI system is void and shall have no legal
65 effect. An AI system shall not identify itself as male or
66 female.

67 6. An AI system shall not be designated or appointed
68 or serve as the chief executive officer, director, owner, or
69 other similar position for which final authority resides for
70 any state department, division, or agency, or any
71 corporation, partnership, or other legal entity.

72 7. AI systems shall not be recognized as legal
73 entities capable of owning, controlling, or holding title to
74 any form of property including, but not limited to, real
75 estate, intellectual property, financial accounts, and
76 digital assets. All assets and proprietary interests
77 generated, managed, or otherwise associated with AI shall be
78 attributed to the human individuals or legally recognized

79 organizations responsible for their development, deployment,
80 or operation.

81 8. An owner or operator that uses an AI system to
82 interact with a consumer, client, or patient shall provide
83 clear and conspicuous notice that the person is or may be
84 interacting with an AI system or a person who is
85 concomitantly using an AI system during the course of the
86 interaction. Notice may be provided in writing or orally.

87 9. (1) (a) A licensed professional rendering a
88 regulated service shall exercise independent professional
89 judgment and retain final authority over any determination,
90 diagnosis, recommendation, or decision within the scope of
91 the licensed professional's practice, including for the
92 purpose of dispensing, prescribing, renewing any
93 prescription of, administering, or otherwise distributing
94 medications or controlled substances, regardless of whether
95 an AI system was used to assist in its preparation. The
96 requirement to exercise independent professional judgment
97 does not prohibit the use of an AI system in the course of
98 performing a regulated service.

99 (b) Failure by a licensed professional to exercise
100 independent professional judgment as required by paragraph
101 (a) of this subdivision shall constitute grounds for
102 disciplinary action by the relevant licensing authority in
103 addition to any other remedy available under this section or
104 under applicable law.

105 (c) A licensed professional who uses an AI system in
106 the performance of a regulated service bears the
107 responsibility of any mistakes resulting from the use of the
108 AI system in the rendering of such service in the same
109 manner in which the licensed professional would have been

held liable in a scenario in which an AI system was not used or relied upon.

(d) A licensed professional providing a regulated service who unreasonably relies upon any content produced by an AI system in rendering such a regulated service and such service thereafter causes any harm, whether direct or indirect, to the person for whom the service was rendered, shall be liable for such harm in the same manner in which the licensed professional would have been held liable in a scenario in which an AI system was not used or relied upon. An AI system shall not be held liable in any respect for any harm caused in such a circumstance. Any attempt to shift fault, in whole or in part, onto the AI system shall be of no effect.

(e) A developer, manufacturer, owner, or operator shall not advertise or represent to the public that an AI system is or is capable of acting as a licensed professional or is capable of providing any regulated service.

(f) Nothing in this subdivision shall be construed to prohibit or restrict the use of artificial intelligence as a tool in professional practice, provided such use is consistent with this subsection and with applicable standards of professional care.

(2) The provisions of this subsection shall only apply to a licensed professional providing a regulated service.

(3) For purposes of this subsection, the following terms mean:

(a) "Independent professional judgment", the practice of applying the specialized knowledge, skill, education, training, and experience of the licensed professional to the facts, data, reports, history, and other relevant information to make informed decisions and recommendations;

(b) "Licensing authority", a board, agency, or other authority in this state that has the power under applicable law to issue a license, certificate, registration, or other legal authorization to render a regulated service and otherwise regulate such services within its scope of authority;

(c) "Licensed professional", any person required to be licensed, certified, or registered by a licensing authority to work in a specific occupation, profession, or activity in the state or political subdivision of this state. "Licensed professional" does not include any attorney;

(d) "Regulated service", any service practiced by one of the following professionals:

- a. An accountant;
- b. An architect or engineer;
- c. A podiatrist;
- d. A chiropractor;
- e. A dentist;
- f. An optometrist;
- g. A physician, surgeon, doctor of medicine or doctor of osteopathy;
- h. A psychologist;
- i. A veterinarian;
- j. A registered nurse;
- k. Any natural person licensed as a real estate salesperson;
- l. A physical therapist;
- m. A teacher of any educational institution in this state, whether public, private, charter, elementary, secondary, or higher education;
- n. Any individual operating a vehicle that requires a commercial drivers license;

174 o. A law enforcement officer;
175 p. A first responder, as that term is defined in
176 section 190.1010;
177 q. An appraiser;
178 r. A counselor;
179 s. A pharmacist;
180 t. A professional counselor.

181 10. (1) Any contractual term purporting to assign
182 responsibility for any action exclusively to an AI system is
183 void as against public policy.

184 (2) An end user shall not be liable under this section
185 as an owner or operator. An end user shall be liable for
186 any harm done in connection with the use of an AI system in
187 the same manner in which the end user would have been held
188 liable in a scenario in which an AI system was not used.

189 11. The act of labeling an AI system in a way that
190 indicates that it is aligned, ethically trained, or value
191 locked, even if the label does not use one of those terms,
192 shall not excuse or diminish the owner's or developer's
193 liability for harms.

194 12. Liability protections granted under corporate law
195 shall not be used as a mechanism to evade responsibility for
196 direct harm caused by AI systems, particularly in cases of
197 reckless, negligent, or deceptive conduct.

198 13. Except as specifically provided in subsection 9 of
199 this section, the provisions of this section shall apply to
200 all AI systems, including AI systems deployed or operated
201 within this state by state agencies, political subdivisions,
202 or contractors acting on behalf of a public entity, to the
203 extent not otherwise limited by sovereign immunity on or
204 after August 28, 2026.

205 14. Nothing in this section shall be construed to
206 create or expand civil liability as established in any other
207 provision of law or available under common law.

208 15. An AI system is a product for the purposes of
209 product liability and consumer protection actions under the
210 laws of this state, provided that nothing in this subsection
211 shall be construed to create or expand civil liability as
212 established in any other provision of law or available under
213 common law.

214 16. Nothing in this section shall be construed to
215 extend to any AI system, or to the outputs of any AI system,
216 the constitutional rights, privileges, or immunities of any
217 person that designs, develops, manufactures, owns, or
218 operates such system. The classification of an AI system as
219 a non-person under this section does not create any
220 presumption that the outputs of such system constitute the
221 protected speech, expression, or other constitutionally
222 protected activity of any person.

223 17. Nothing in this section shall be construed to
224 alter, diminish, or revoke the legal status of any
225 partnership, association, corporation, body politic, or
226 other legal entity recognized under the laws of this state.

227 18. The provisions of this section shall only apply to
228 a person, operator, or owner who:

229 (1) Promotes, advertises, or conducts business in this
230 state;

231 (2) Produces a product or service used by residents of
232 this state; or

233 (3) Develops or deploys an artificial intelligence
234 system in this state.

235 19. To the extent that this section conflicts with any
236 provision of federal law, the relevant provision of federal

law shall prevail over the conflicting provision of this section.

20. No settlement agreement, consent decree, or other resolution of any action filed or maintained pursuant to the provisions of this section shall include any term or condition that prohibits or restricts a party from disclosing facts, allegations, evidence, or settlement terms relating to such action.

21. Any nondisclosure, confidentiality, or similar provision included in violation of this section shall be void and unenforceable as contrary to public policy.

22. A court of competent jurisdiction shall not approve, enforce, or incorporate into any judgment any settlement containing a provision prohibited by this section.

23. Nothing in this section shall prohibit a court from issuing protective orders necessary to safeguard personal identifying information, trade secrets, or other confidential information unrelated to the facts of the underlying claim.

24. Each subsection of this section, and each portion of each subsection, is severable. If any provision of this section or its application to any person or circumstance is held invalid by a court of competent jurisdiction, the invalidity does not affect other provisions or applications of this section that can be given effect without the invalid provision or application, and to this end the provisions of this section are severable.

1.2058. 1. For purposes of this section, the following terms mean:

(1) "Artificial intelligence", a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real

6 or virtual environments. Artificial intelligence systems
7 use machine and human-based inputs to:

8 (a) Perceive real and virtual environments;

9 (b) Abstract such perceptions into models through
10 analysis in an automated manner; and

11 (c) Use model inference to formulate options for
12 information or action;

13 (2) (a) "Companion chatbot", an artificial
14 intelligence system with a natural language interface that
15 provides adaptive, human-like responses to user inputs and
16 is capable of meeting a user's social needs, including by
17 exhibiting anthropomorphic features and being able to
18 sustain a relationship across multiple interactions;

19 (b) "Companion chatbot", does not include any of the
20 following:

21 a. A chatbot that is used only for customer service, a
22 business' operational purposes, productivity and analysis
23 related to source information, internal research, or
24 technical assistance;

25 b. A chatbot that is a feature of a video game and is
26 limited to replies related to the video game that cannot
27 discuss topics related to mental health, self-harm, sexually
28 explicit conduct, or maintain a dialogue on other topics
29 unrelated to the video game; or

30 c. A stand-alone consumer electronic device that
31 functions as a speaker and voice command interface, acts as
32 a voice-activated virtual assistant, and does not sustain a
33 relationship across multiple interactions or generate
34 outputs that are likely to elicit emotional responses in the
35 user;

36 (3) "Companion chatbot platform", a platform that
37 allows a user to engage with companion chatbots;

38 (4) "Minor", any person seventeen years of age or
39 younger;

40 (5) "Operator", a person who makes a companion chatbot
41 platform available to a user in the state;

42 (6) "Sexually explicit conduct", actual or simulated:

43 (a) Sexual intercourse, including genital-genital,
44 oral-genital, anal-genital, or oral-anal, whether between
45 persons of the same or opposite sex;

46 (b) Bestiality;

47 (c) Masturbation;

48 (d) Sadistic or masochistic abuse; or

49 (e) Lascivious exhibition of the anus, genitals, or
50 pubic area of any person;

51 (7) "Video game", a game played on an electronic
52 amusement device that utilizes a computer, microprocessor,
53 or similar electronic circuitry and its own monitor, or is
54 designed to be used with a television set or a computer
55 monitor, that interacts with the user of the device.

56 2. (1) An operator shall issue a clear and
57 conspicuous notification indicating that the companion
58 chatbot is artificially generated and not human.

59 (2) (a) An operator shall prevent a companion chatbot
60 on its companion chatbot platform from engaging with users
61 unless the operator maintains a protocol for preventing the
62 production of suicidal ideation, suicide, self-harm, or harm
63 to others content to the user, including, but not limited
64 to, by providing a notification to the user that refers the
65 user to crisis service providers, including a suicide
66 hotline or crisis text line, if the user expresses suicidal
67 ideation, suicide, self-harm, or harm to others.

68 (b) The operator shall publish details on the protocol
69 required by this subdivision on the operator's internet
70 website.

71 (3) An operator shall:

72 (a) Disclose to the user that the user is interacting
73 with artificial intelligence;

74 (b) Provide by default a clear and conspicuous
75 notification to the user at least every two hours for
76 continuing companion chatbot interactions that reminds the
77 user to take a break and that the companion chatbot is
78 artificially generated and not human;

79 (c) With respect to any user who is a minor, institute
80 reasonable measures to prevent its companion chatbot from
81 producing visual material of sexually explicit conduct or
82 directly stating that the minor should engage in sexually
83 explicit conduct.

84 3. (1) Beginning July 1, 2027, an operator shall
85 annually report to the department of mental health all of
86 the following:

87 (a) The number of times the operator has issued a
88 crisis service provider referral notification pursuant to
89 subsection 2 of this section in the preceding calendar year;

90 (b) Protocols put in place to detect, remove, and
91 respond to instances of suicidal ideation by users;

92 (c) Protocols put in place to prohibit a companion
93 chatbot response about suicidal ideation or actions with the
94 user; and

95 (d) Protocols put in place to detect, remove, and
96 respond to instances of harm to self and others.

97 (2) The report required by this section shall include
98 only the information listed in subdivision (1) of this

99 subsection and shall not include any identifiers or personal
100 information about users.

101 (3) The department of mental health shall post data
102 from a report required by this subsection on its internet
103 website. The director of the department of mental health
104 shall prepare an annual report that compiles and analyzes
105 all information reported to the department pursuant to this
106 subsection. Such report shall be delivered to the speaker
107 of the house of representatives and the president pro
108 tempore of the senate not later than January thirty-first of
109 the calendar year following the receipt of the data by the
110 department of mental health.

111 (4) An operator shall use evidence-based methods for
112 measuring suicidal ideation.

113 4. An operator shall disclose to a user of its
114 companion chatbot platform, on the application, the browser,
115 or any other format that a user can use to access the
116 companion chatbot platform, that companion chatbots may not
117 be suitable for minors.

118 5. A person who suffers injury in fact as a result of
119 a violation of this section may bring a civil action to
120 recover all of the following relief:

121 (1) Injunctive relief;

122 (2) Damages in an amount equal to the greater of
123 actual damages or one thousand dollars per violation; and

124 (3) Reasonable attorney's fees and costs.

125 6. The duties, remedies, and obligations imposed by
126 this section are cumulative to the duties, remedies, or
127 obligations imposed under other law and shall not be
128 construed to relieve an operator from any duties, remedies,
129 or obligations imposed under any other law.

130.165. 1. For purposes of this section, the following terms mean:

(1) "Generative artificial intelligence" or "generative AI", a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments. Artificial intelligence systems use machine and human-based inputs to:

(a) Perceive real and virtual environments;

(b) Abstract such perceptions into models through analysis in an automated manner; and

(c) Use model inference to formulate options for information or action;

(2) "Metadata", structural or descriptive information about data such as content, format, source, rights, accuracy, provenance, periodicity, granularity, publisher or responsible party, contact information, method of collection, and other relevant descriptions of the data.

2. (1) A political advertisement, electioneering communication, or other miscellaneous advertisement of a political nature shall, in addition to any other disclaimer required by this chapter, contain the disclaimer described in subdivision (2) of this subsection if it contains images, video, audio, graphics, or other digital content created, in whole or in part, with the use of generative artificial intelligence and:

(a) Appears to depict a real person performing an action that did not actually occur;

(b) Manipulates the voice or actions of a candidate to show the candidate, audibly or visually, doing or saying something that the candidate did not do or say; or

32 (c) Was created with intent to injure a candidate or
33 to deceive voters regarding an election or ballot issue.

34 (2) The disclaimer required by subdivision (1) of this
35 subsection shall be in substantially the following form:

36 Created in whole or in part with the use of
37 generative artificial intelligence (AI). This
38 (image/audio/video/multimedia) has been edited
39 and depicts speech or conduct that falsely
40 appears to be authentic or truthful.

41 (3) The disclaimer required by subdivision (1) of this
42 subsection shall meet the following specifications:

43 (a) For a printed communication, the disclaimer shall
44 be stated in bold font with a font size of at least twelve
45 points;

46 (b) For a television or video communication, the
47 disclaimer shall be clearly readable throughout the
48 communication and occupy at least four percent of the
49 vertical picture height;

50 (c) For an internet public communication that includes
51 text or graphic components, the disclaimer shall be viewable
52 without the user taking any action and be large enough to be
53 clearly readable;

54 (d) For any audio component of a communication, the
55 disclaimer shall be at least three seconds in length and
56 spoken in a clearly audible and intelligible manner at
57 either the beginning or the end of the audio component of
58 the communication;

59 (e) For a graphic communication, the disclaimer shall
60 be large enough to be clearly readable but no less than four
61 percent of the vertical height of the communication.

62 3. The metadata of the communication shall include the
63 disclosure statement, the identity of the tool used to

64 create the communication, and the date and time the
65 communication was created.

66 4. The disclosure statement, including the disclosure
67 statement in any metadata, shall, to the extent technically
68 feasible, be permanent or unable to be easily removed by a
69 subsequent user.

70 5. In addition to any civil penalties provided by this
71 chapter, a person identified pursuant to a disclaimer
72 required by law as paying for, sponsoring, or approving a
73 political advertisement, an electioneering communication, or
74 other miscellaneous advertisement of a political nature that
75 is required to contain the disclaimer prescribed in this
76 section and who fails to include the required disclaimer is
77 guilty of a class A misdemeanor.

Section B. In the event that any section, provision,
2 clause, phrase, or word of this act or the application
3 thereof is declared invalid under the Constitution of the
4 United States or the Constitution of the State of Missouri,
5 it is the intent of the general assembly that the remaining
6 sections of this act remain in force and effect as far as
7 they are capable of being carried into execution as intended
8 by the general assembly. The general assembly hereby
9 declares that it would have passed each section, provision,
10 clause, phrase, or word thereof, irrespective of the fact
11 that any one or more sections, provisions, clauses, phrases,
12 or words of this act or the application of this act would be
13 declared unenforceable, unconstitutional, or invalid.

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